

2019 P L C (C.S.) 152

[Lahore High Court (Bahawalpur Bench)]

Before Jawad Hassan, J

RAZIA SULTANA and another

Versus

CHIEF EXECUTIVE OFFICER and 5 others

Writ Petition No.4000 of 2017, decided on 11th September, 2018.

Civil service---

---Contract appointment---Termination from service---Scope---Employee was appointed on contract basis due to non-availability of qualified candidate---Department directed the employee to obtain required academic qualification within three years but in the meantime her services were terminated---Contention of employee was that she filed an appeal before the higher authority which had been accepted but order for her reinstatement had not been implemented---Plea of department was that order for reinstatement of employee was fake and fabricated---Validity---Department conducted inquiries to probe the matter/reinstatement order---Inquiry committee submitted its report that reinstatement order was fake/bogus and self-managed---Department had initiated criminal proceedings against the employee for manipulating the reinstatement order---Employee was directed to appear before the inquiry committee for her defense but she did not appear before the said committee---Employee was provided an opportunity of hearing in circumstances---Employee had been relieved from the duty after the expiry of her contract and that too she could not enhance her requisite qualification---Constitutional petition was dismissed in circumstances.

Ms. Samina Qureshi for Petitioner.

Muhammad Tahir Saeed Ramay, Assistant Advocate-General for Respondents.

JUDGMENT

JAWAD HASSAN, J.-----Through this petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioners have challenged the validity of impugned order dated 22.02.2017 passed by the Respondent No.1.

2. Brief facts succinctly revealed from the petition are that the Petitioner No.1 was selected as Science and Math Teacher (SMT) on contract basis in the Respondents Department vide order dated 16.10.2000 due to non-availability of F.Sc. qualified candidates upon the recommendations of School Council and approval by the District Education

Coordinator, Bahawalpur. The contract period of the Petitioner No.1 was extended from time to time. Meanwhile, vide notification dated 24.09.2007 those Educators who does not possess the requisite qualification were directed to obtain the academic qualification within three years which was further extended for one year vide notification dated 21.11.2011. But suddenly the Petitioner No.1 was relieved from duty by the Respondent No.3 on 24.05.2011. The Petitioner No.1 filed an Appeal before the District Education Officer (EE-W) against the order dated 24.05.2011 for her reinstatement which remained pending. Thereafter the Petitioner No.1 filed Appeal before the EDO which was accepted vide order dated 30.08.2016 whereby the Petitioner No.1 was reinstated into service. The Petitioner No.1 was allowed to join her duty w.e.f. 31.08.2016 but subsequently on 19.09.2016 the Respondent No.3 restrained the Petitioner No.1 to mark her attendance. Feeling aggrieved thereby the Petitioner No.1 filed W.P. No.7835/2016 which was disposed of vide order dated 16.02.2017 with the direction to the Respondents to implement the order dated 30.08.2016 within 15 days. After that due to non-compliance of said order the Petitioner No.1 filed Crl. Orgl. No.433/2017 which was disposed of by this Court vide order dated 27.04.2018 when the Respondent No.3 produced copy of order dated 22.02.2017 to further challenge the same. Hence, this petition.

3. In reply to this petition the Respondent No.1 filed report and parawise comments and prayed for dismissal of the petition.

4. Learned counsel for the Petitioners inter alia submitted that the impugned order is against law and facts; that the Respondent No.3 has not taken into consideration the previous orders of this Court for implementation of her reinstatement; that the impugned order has been passed without affording opportunity of personal hearing to the Petitioners as such the same has been passed against the principle of natural justice.

5. On the contrary, learned Law Officer vehemently contested the arguments advanced by the learned counsel for the Petitioners and prayed for dismissal of the petition on the grounds that the impugned order has been passed after two successive inquiries; that it was proved in both the inquiries that the reinstatement order was fake and fabricated, as such action to the concerned Agency against the Petitioners has rightly been recommended; that the Petitioner No.1 cannot be reinstated into service on the basis of fake and fabricated reinstatement orders.

6. I have heard the arguments of both the sides and perused the record.

7. The main contention of the Petitioners is that the Respondents should have implemented the order of this Court dated 16.02.2017 in which the Respondents were directed to implement the order of reinstatement of Petitioner No.1 dated 30.08.2016. But the stance adopted by the Respondents in response to this contention is that as the order dated 30.08.2016 has been declared fake and fabricated after two successive inquiries, therefore, the Petitioner No.1 was not entitled to be reinstated into service and in this regard certain documents have been appended with the report and parawise comments. The impugned order dated 22.02.2017 is self-explanatory which explicitly depicts that two inquiries were held to probe the matter/reinstatement order dated 30.08.2016; resultantly the inquiry committee

submitted its report vide letter dated 04.01.2017 which transpired that the above reinstatement order dated 30.08.2016 was fake/bogus and self-managed. The impugned order further reflects that Mr. Zahoor Ahmed Chohan, who purportedly accepted the Appeal of the Petitioner No.1 and ordered for her reinstatement, has himself explained vide his letter dated 13.02.2017 to the Department that no such Appeal was ever presented to/heard by him and the order in reference has never been issued by him; he has also requested that the entry of the same in the dispatch register might be declared null and void, resultantly the entry of this bogus and fake order in the dispatch register has been declared null and void w.e.f. its date of entry in the register. The impugned order further reveals that due to the said act of manipulating the reinstatement order dated 30.08.2016 by the Petitioners, the Deputy Director, Anti-Corruption Establishment Bahawalpur has been written for initiation of criminal proceedings/ registration of F.I.R. against both the Petitioners.

8. Moreover, the contention of the Petitioners that they have been condemned unheard during the inquiry proceedings has been replied by the Respondent No.1 in their report and parawise comments that as the Petitioner No.1 was not a civil servant, therefore, regular inquiry was not required to be conducted and being contract employee Petitioner No.1 could be terminated even in case she was in service. The inquiry report dated 04.01.2017 tendered by the Respondents along with their report and parawise comments shows that vide letter dated 15.12.2016 the Petitioners were required to appear before the inquiry committee to produce their defence regarding the bogus reinstatement orders but they did not bother to appear rather the Petitioner No.2 wrote through post to the committee that he has no role in the preparation and insertion of reinstatement order in the dispatch register, as such the Petitioners contention that they have been condemned unheard is not instructive. It is further added that the Petitioner No.1 was relieved from the duty vide order dated 24.05.2011 after the expiry of her contract and that too she could not enhance the requisite qualification.

9. In view of what has been discussed above, I am not inclined to extend any favour to the Petitioners therefore, the instant petition is hereby dismissed.

ZC/R-13/L

Petition dismissed